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Amending Acts

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2. Some Nepal Laws Amendment Act, 2063 2063.06.28

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4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 This Act came into force from Jestha 15, 2065. 2066.10.07

5. Act Made to Amend Some Nepal Acts Relating to Education, 2077 2077.03.11

6. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 46 of the year 2049

An Act Made to Make Provision Relating to Tribhuvan University

Preamble: Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Whereas, to prepare skilled manpower necessary for the overall development of Nepal, to provide quality higher education, to conduct research in various aspects, to preserve and develop national culture and tradition, and in the process of making knowledge and research in the fields of arts, science, technology and vocational areas comprehensive, practical and time-relevant, Added by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. it is desirable to make Tribhuvan University, established in the year 2016, more capable,

Therefore, this Act is enacted by Parliament in the twenty-first year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Tribhuvan University Act, 2049".

(2) This Act shall come into force immediately. 2.

Definition: Unless the subject or context otherwise requires, in this Act,- (a) "University" means Tribhuvan University. (b) "Assembly" means the University Assembly pursuant to Section 8. (c) "Academic Council" means the Academic Council pursuant to Section 11. (d) "Executive Council" means the Executive Council pursuant to Section 13. (e) "Service Commission" means the Service Commission pursuant to Section 15. (f) "Institute of Study" means an Institute of Study pursuant to this Act. (g) "Faculty" means a Faculty pursuant to this Act. (h) "Research Centre" means a Research Centre pursuant to this Act. (i) "Dean" means the head of

an Institute of Study or Faculty. (j) "Executive Director" means the head of a Research Centre. (k) "Teacher" means a Professor, Associate Professor, Deputy Professor, and Assistant Professor who provides education or is engaged in research work at the University, and said word also denotes instructors at various levels of the University and a person designated as a teacher in the rules made under this Act. (l) "Department" means a Central Department or Department pursuant to this Act. (m) "Constituent Campus" (Constituent College) means a constituent campus (constituent college) of the University. (n) "Affiliated Campus" (Affiliated College) means a campus (affiliated college) affiliated by the University. (o) "Faculty Board" means a Faculty Board established pursuant to this Act. (p) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2 Establishment, Functions, Duties and Powers of the University

3. Tribhuvan University to Continue: (1) The Tribhuvan University established prior to the commencement of this Act shall be deemed to have been established under this Act and shall continue. (2) The central office of the University shall be located in Kathmandu.

4. University to be an Autonomous Institution: (1) The University shall be a self-governing and organized institution with perpetual succession. (2) The University shall have its own separate seal for all its activities. (3) The University may, like a person, acquire, possess, sell or otherwise dispose of movable and immovable property. (4) The University may, like a person, sue and be sued in its own name.

5.

Functions, Duties and Powers of the University: The functions, duties and powers of the University shall be as follows:- (a) To make provision for Institutes of Study, Faculties, Research Centres and Departments to make arrangements for and operate various teaching, training and research as prescribed for the development of higher education, and to supervise and inspect them. (b) To award certificates as prescribed to students, trainees or researchers who have achieved prescribed higher education from Constituent Campuses (Constituent Colleges) and Affiliated Campuses (Affiliated Colleges), and to confer honorary degrees to distinguished persons. (c) To grant permission for establishing campuses (colleges) in the private sector and to grant affiliation, and to determine the facilities and assistance to be provided by the University to such affiliated campuses (colleges). (d) To establish relations with domestic or foreign universities or educational institutions. (e) To receive financial assistance from domestic or foreign academic, educational or other institutions and individuals, and to exchange educational programs. (f) To make provision for awarding scholarships, medals and prizes. (g) To make arrangements for and operate various sports and welfare programs under the University. (h) To make rules necessary for the University. (i) To perform other works relating to the University.

Chapter-3 Form of Organization of the University, Office Bearers and University Assembly

6. Organization of the University: The organization of the University shall be as follows. Their collective form shall be the form of the University. (a) University Assembly, (b) Academic Council, (c) Executive Council, (d) Service Commission, (e) Institutes of Study, (f) Faculties, (g) Departments, (h) Constituent Campuses, (Constituent Colleges) (i) Affiliated Campuses, (Affiliated Colleges) (j) Research Centres, and (k) Other bodies.

7. Office Bearers: The University shall have the following office bearers:- (a) Chancellor, (b) Pro-Chancellor, (c) Vice-Chancellor, (d) Chairperson, Service Commission, (e) Rector, (f) Registrar, (g) Dean, (h) Executive Director, (i) Assistant Dean, (j) Campus (College) Chief, (k) Other prescribed office bearers.

8.

Formation of University Assembly: (1) There shall be a University Assembly as the supreme body in the University. (2) The formation of the University Assembly shall be as follows:- (a) Chancellor - Chairperson (b) Pro-Chancellor - Vice-Chairperson (c) Vice-Chancellor - Member (d) Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (e) Chancellor of Nepal Academy, Vice-Chancellor of Nepal Academy of Science and Technology, and two from among the Vice-Chancellors of other universities - Member (f) Rector - Member Secretary (g) Registrar - Member (h) Secretary, Ministry of Education, Science

and Technology - Member (i) Secretary, Ministry of Finance - Member (j) Member, National Planning Commission (looking after education) - Member (k) One from among former Vice-Chancellors - Member (l) Deans of Institutes of Study - Member (m) Deans of Faculties - Member (n) Executive Directors of Research Centres - Member (o) Five from among the Heads of Departments - Member (p) Five teachers elected by the electoral college of the Chairperson and Secretary of the Tribhuvan University Nepal Professor Association Campus Unit on the basis of proportional single transferable vote - Member Explanation: To be a candidate in the election of members pursuant to this clause, a teacher must have been in the permanent service of the University for at least fifteen years. Added by Some Nepal Laws Amendment Act, 2063. (p1) One representative of the Tribhuvan University Professor Association - Member Added by Some Nepal Laws Amendment Act, 2063. (p2) One representative of the Nepal Public Campus Association - Member (q) Two from among the Campus (College) Chiefs of Constituent Campuses (Constituent Colleges) - Member (r) Two from among the Campus (College) Chiefs of Affiliated Campuses (Affiliated Colleges) - Member (s) One representative of the Nepal Professor Association - Member (t) Two from among distinguished scholars or eminent persons - Member (u) Two from among the Chairpersons of the University Free Student Union - Member (v) One from among journalists - Member (w) One representative of the Central Committee of the University Employees Association - Member (x) Two from among industrialists, businessmen and donors - Member (3) Nomination of other members of the Assembly, other than elected and ex-officio members, shall be done by the Chancellor on the recommendation of the Executive Council. (4) The term of office of nominated and elected members shall be three years.

Provided that if a nominated member ceases to hold the position by virtue of which he/she was nominated, he/she shall automatically cease to be a member of the Assembly. 9. Meeting of the Assembly: (1) The meeting of the Assembly shall ordinarily be held twice a year. Provided that a special meeting of the Assembly may be called if necessary.

(2) The meeting of the Assembly shall be chaired by the Chairperson of the Assembly. In the absence of the Chairperson, the meeting of the Assembly shall be chaired by the Vice-Chairperson.

(3) If fifty percent of the total number of members of the Assembly are present, the quorum for the meeting shall be deemed to be complete. Provided that if the meeting is adjourned due to lack of quorum and the meeting is reconvened, the quorum shall be deemed to be complete if one-third of the total number of members of the Assembly are present. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. (3a) The person chairing the meeting of the Assembly shall certify the decision of the meeting.

(4) Other procedures of the meeting of the Assembly shall be as determined by the Assembly itself. 10. Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:-

- (a) To provide guidance to the University.
 - (b) To determine the policy of the University.
 - (c) To give necessary directions to any body or office bearer under the University.
 - (d) To approve the annual budget and program of the University.
 - (e) To approve the long-term plan of the University.
 - (f) To pass rules relating to the University.
 - (g) To form special committees and commissions as required.
 - (h) To perform other works as prescribed.
- Chapter-4

11.

Formation of Academic Council: (1) There shall be an Academic Council consisting of the following members to function as the academic body of the University:- (a) Vice-Chancellor - Chairperson (b) Rector - Vice-Chairperson (c) Registrar - Member (d) Deans of Institutes of Study - Member (e) Deans of Faculties - Member (f) Ten from among the Chairpersons of Subject Committees, ensuring representation of at least one from each Faculty and Institute of Study - Member (g) Two from among the Campus (College) Chiefs of Constituent Campuses (Constituent Colleges) - Member (h) Two from among the Campus (College) Chiefs of Affiliated Campuses (Affiliated Colleges) - Member (i) Executive Director of Curriculum Development Centre - Member (j) Executive Directors of Research Centres - Member (k) One representative of the Nepal Professor Association - Member (l) Two from among distinguished scholars - Member (m) Controller, Examination Control Office, University - Member (n) Five from among the Heads of Departments - Member (o) Ten from among the senior teachers of the University - Member (2) The nomination of members pursuant to clause (f) of sub-section (1) shall be done by the Vice-Chancellor for two years on the recommendation of the Deans of the respective Faculties and Institutes of Study. (3) The nomination of nominated members other than those pursuant to clause (f) of sub-section (1) shall be done by the Vice-Chancellor for two years on the recommendation of the Executive Council. (4) The Vice-Chancellor shall designate one of the Deans to act as Secretary of the Academic Council. 12. Functions, Duties and Powers of Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) To make provision for degrees to be awarded by the University. (b) To determine the curriculum of subjects for study, research and training under the University. (c) To prescribe the type of examinations. (d) To prescribe the eligibility and basis for admission to subjects to be studied, taught and researched at the University. (e) To advise the Executive Council on academic matters. (f) To determine policy relating to research. (g) To approve or give directions for the implementation of recommendations and decisions made by the Faculty Boards of the University. (h) To perform other works as prescribed. Chapter-5 Executive Council 13.

Formation of Executive Council: (1) There shall be an Executive Council consisting of the following members to function as the executive body of the University:- (a) Vice-Chancellor - Chairperson (b) Rector - Member (c) One from among the Deans of Institutes of Study - Member (d) One from among the Deans of Faculties - Member (e) Two from among the teachers of the University - Member (f) Registrar - Member Secretary (2) The nomination of members pursuant to clauses (c), (d) and (e) of sub-section (1) shall be done by the Assembly for two years on the recommendation of the Vice-Chancellor. 14. Functions, Duties and Powers of Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) To implement or cause to implement the decisions of the Assembly. (b) To prepare the annual program, budget, progress report, audit report, other reports and proposals of the University and present them to the Assembly for approval or ratification. (c) To operate, protect and supervise the movable and immovable property of the University. (d) To accept financial and other assistance provided for the University. (e) To transfer rights over movable and immovable property of the University or to enter into any agreement, contract or lease. (f) To determine student fees. (g) To grant affiliation as prescribed to campuses (colleges) to be operated in the private sector and to recommend grants to affiliated campuses (colleges) on the basis of evaluation. (h) To prepare draft rules and present them to the Assembly for approval, and to implement them after approval from the Assembly. (i) In the course of implementing the objectives of this Act, to issue orders on matters not covered by the rules to systematize internal work, provided they are not inconsistent with this Act. Provided that such order shall automatically be void if not approved by the subsequent Assembly. (j) To determine the

posts of teachers and employees of the University and to make appointments and promotions on the recommendation of the Service Commission. (k) To appoint Deans, Executive Directors, Heads of Central Departments and Campus (College) Chiefs. (l) To perform other works as prescribed. Chapter-6 Service Commission 15.

Service Commission: (1) To recommend for the appointment and promotion of teachers and employees of the University, an impartial and independent Service Commission consisting of the following members shall be formed:- (a) Person appointed by the Chancellor - Chairperson (b) Member, Public Service Commission - Member (c) One from among Professors - Member (2) For presenting a recommendation for the appointment of the Chairperson and member pursuant to clauses (a) and (c) of sub-section (1), a committee consisting of two members of the Assembly under the chairpersonship of the Pro-Chancellor shall be formed by the Chancellor, and the Chairperson and member shall be appointed by the Chancellor on the recommendation of that committee. (3) The term of office of the Chairperson and nominated member of the Service Commission shall be three years. (4) The functions, duties, powers and procedures of the Service Commission shall be as prescribed. (5) The Service Commission shall base its decisions primarily on academic ability and experience for the appointment and promotion of teachers, and on administrative efficiency and experience for the appointment and promotion of employees. (6) The functions, duties, powers and remuneration, facilities and other conditions of service of the Chairperson and members of the Service Commission shall be as prescribed. Chapter-7 Office Bearers of the University 16. Chancellor: Amended by Some Nepal Laws Amendment Act, 2063. (1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the head of the University and the Chairperson of the Assembly. In his/her presence, he/she shall occupy the chair at the meeting of the Assembly and at the convocation ceremony of the University. (3) The Chancellor may inspect and give directions on any subject or matter related to the University. 17. Pro-Chancellor: (1) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. The Minister or Minister of State for Education, Science and Technology shall be the Pro-Chancellor of the University. (2) In the absence of the Chancellor, the Pro-Chancellor shall chair the meeting of the Assembly and the convocation ceremony of the University. (3) The Pro-Chancellor may inspect and give directions to the University as required. 18. Vice-Chancellor: (1) The Vice-Chancellor shall be the chief office bearer working full-time in the University. (2) For presenting a recommendation for appointment to the post of Vice-Chancellor of the University, a committee consisting of two members of the Assembly under the chairpersonship of the Pro-Chancellor shall be formed by the Chancellor, and the Vice-Chancellor shall be appointed by the Chancellor on the recommendation of that committee. (3) The term of office of the Vice-Chancellor shall be four years.

His/her remuneration, facilities and other conditions of service shall be as prescribed.

(4) The Vice-Chancellor shall have general control over all activities of the University and may give directions and supervise the activities of the University.

(5) The Vice-Chancellor shall implement or cause to implement the decisions and directions of the Assembly.

(6) In the absence of both the Chancellor and the Pro-Chancellor, the Vice-Chancellor shall chair the Assembly and the convocation ceremony of the University.

(7) Except for the works specified to be performed by any body or authority under this Act or the rules made under this Act, the Vice-Chancellor shall perform other works. The Vice-Chancellor shall immediately inform the Chancellor of such work and shall get it ratified by the subsequent meeting of the Assembly.

(8) Other functions, duties and powers of the Vice-Chancellor shall be as prescribed. 19. Rector: (1) The Chancellor shall appoint the Rector of the University on the recommendation of the Vice-Chancellor.

(2) The Rector shall be an office bearer working full-time in the University.

(3) The term of office of the Rector shall be four years.

(4) In the absence of the Rector, the Vice-Chancellor shall appoint one of the Deans to perform the work of the Rector.

(5) The remuneration, facilities and other conditions of service of the Rector shall be as prescribed.

(6) The Rector shall supervise and coordinate the educational, academic and research activities of the University.

(7) In the absence of the Vice-Chancellor, the Rector shall perform the work of the Vice-Chancellor.

(8) The Rector shall supervise the work of the educational and academic bodies of the University.

(9) The Rector shall formulate plans and programs to enhance the educational and academic quality of the University.

(10) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. The Rector shall keep a record of the decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor.

(11) Other functions, duties and powers of the Rector shall be as prescribed. 20.

Registrar: (1) The Chancellor shall appoint the Registrar of the University on the recommendation of the Vice-Chancellor. (2) The Registrar shall be an office bearer working full-time in the University. (3) The term of office of the Registrar shall be four years. (4) In the absence of the Registrar, the Vice-Chancellor shall appoint one of the Deans to perform the work that is to be done by the Registrar. (5) The remuneration, facilities and other conditions of service of the Registrar shall be as prescribed. (6) The general administration and fund of the University shall be under the supervision of the Registrar, and he/she shall give such advice to the Assembly as he/she deems appropriate regarding the financial policy to be adopted by the University. (7) The Registrar shall be responsible for preparing the annual estimate of income and expenditure of the University to be presented to the Assembly, registering the names of students, conducting examinations and arranging certificates. (8) The Registrar shall have the accounts of the University audited as prescribed and present the report thereof to the Assembly. (9) Other functions, duties and powers of the Registrar shall be as prescribed. 21. Dean, Executive Director and Other Office Bearers: The appointment, functions, duties, powers, remuneration, facilities and other conditions of service of Deans, Executive Directors and other office bearers shall be as prescribed. 21a. Added by the Act to Amend Some Nepal Acts, 2064. Period for Making Appointment: Notwithstanding anything contained elsewhere in this Act, if the post of any office bearer of the University falls vacant, the concerned authority shall make an appointment to fill such post within three months of the vacancy. 21b. Added by the Act to Amend Some Nepal Acts, 2064. May Assign Responsibility: Notwithstanding anything contained elsewhere in this Act, if any post of the University falls vacant, until such post is filled, for conducting daily work for a maximum of three months, the Chancellor, in consultation with the Pro-Chancellor, shall assign the responsibility of the Vice-Chancellor, and the Vice-Chancellor shall assign the responsibility of other office bearers to any senior-most professor of the University. 21c. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2077.

May be Removed from Office: (1) If one-third of the members present in the Assembly submit a written application to the Chancellor stating that the Vice-Chancellor, Rector, Registrar or Chairperson of the Service Commission has not fulfilled the responsibilities corresponding to his/her office, has not worked honestly, or has not conducted himself/herself in a manner befitting the office, the Chancellor shall form a three-member investigation committee consisting of a member of the Assembly as Chairperson, a member of the University Grants Commission, and the Secretary of the Ministry of Education, Science and Technology. (2) The investigation committee formed pursuant to sub-section (1) shall conduct necessary investigation in that regard and submit its report to the Chancellor within thirty days. (3) After receiving the report pursuant to sub-section (2), the Chancellor shall present that report to the Assembly. (4) When deliberation is held on the report submitted pursuant to sub-section (2), if at least fifty-one percent of the total number of members of the Assembly decide to remove the Vice-Chancellor, Rector, Registrar or Chairperson of the Service Commission from office, the Chancellor shall remove the Vice-Chancellor, Rector, Registrar or Chairperson of the Service Commission from office. Provided that before such removal, he/she shall not be denied an opportunity to present a defense. (5) The procedure to be adopted when investigating allegations or removing from office other office bearers of the University other than the Vice-Chancellor, Rector, Registrar and Chairperson of the Service Commission pursuant to sub-section (1) shall be as prescribed. (6) If an investigation is initiated against any office bearer pursuant to this Section, a final decision shall be made within six months. Until such final decision is made, he/she shall not be allowed to work in the post he/she holds. (7) For the purpose of performing the daily work to be done by the office bearer pursuant to sub-section (6), the Chancellor may assign the responsibility to the senior-most office bearer of the University. 22. Establishment and Operation of Research Centres: Various research centres may be established in the University as required for educational, academic and research purposes. The establishment, functions, duties, powers and operation of such centres shall be as prescribed. 23. Formation, Functions, Duties and Powers of Faculty Board: The formation, functions, duties and powers of the Faculty Board shall be as prescribed. Chapter-8 Fund, Accounts and Audit of the University 24.

Fund of the University: (1) There shall be one fund of the University. (2) The fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount borrowed by the University, (c) Amount received as donation, endowment and financial assistance for the University, (d) Amount received from fees and any other sources. (3) The amount of the University Fund shall be deposited by opening an account in a prescribed bank. (4) The operation of the University Fund and account shall be as prescribed. (5) All expenses of the University shall be borne from the fund pursuant to sub-section (2). 25. Accounts and Audit: (1) The accounts of income and expenditure of the University shall be kept in accordance with the prevailing law. Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. (2) The audit of the University shall be conducted by the Auditor General. 26. Establishment and Affiliation of Campuses (Colleges) in the Private Sector: (1) A campus (college) may be established in the private sector with the permission of the University. (2) A campus (college) established pursuant to sub-section (1) shall obtain affiliation with the University as prescribed. (3) The form of a campus (college) obtaining affiliation pursuant to sub-section (2) and the financial assistance to be received by such campus (college) shall be as prescribed. 27. Eligibility for Admission to the University: The eligibility required for admission to the University shall be as prescribed. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. 27a.

Free Higher Education and Scholarship: (1) Higher education shall be free for Dalit, marginalized, disabled and economically poor students who meet the criteria prescribed by the University and are admitted to the University or its constituent and community educational institutions. (2) For the purpose of sub-section (1),

the basis, criteria, classification and other arrangements shall be as prescribed by the Government of Nepal by publishing a notice in the Nepal Gazette. (3) A student shall be entitled to avail the facility pursuant to sub-section (1) only once at each level. (4) Notwithstanding anything contained in the prevailing law, seats shall be reserved as prescribed for Dalit students for admission to technical and vocational higher education. (5) The University shall make provision for higher education for sons and daughters of martyrs, disappeared persons and persons with disabilities as provided in the prevailing law. (6) A student who has studied from class six to class ten in a community school shall receive a scholarship in higher education in accordance with the prevailing law. 28. Acts not to be Invalid: If any act is done while the post of any office bearer of the University is vacant or while there is a defect in the appointment of any office bearer or the formation of any body, such act shall not be deemed invalid only by reason thereof. 29. Protection for Acts Done in Good Faith: No suit or other legal proceeding shall be instituted against the University or any office bearer of the University in relation to any act done or intended to be done in good faith pursuant to this Act. 30. Delegation of Powers: (1) The Assembly may delegate all or some of the powers conferred on it pursuant to this Act or the rules made under this Act to the Executive Council or the Vice-Chancellor. (2) The Academic Council may delegate all or some of the powers conferred on it pursuant to this Act or the rules made under this Act to the Faculty Board of the University. (3) The Executive Council may delegate all or some of the powers conferred on it pursuant to this Act or the rules made under this Act to any office bearer or any committee of the University. (4) The Service Commission may delegate all or some of the powers conferred on it pursuant to this Act or the rules made under this Act to any committee of the University. 31.

Contact with Government of Nepal: When contacting the Government of Nepal, the University shall do so through the Ministry of Education, Science and Technology as amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. 32. Annual Report: The annual report of the University shall be presented to the Assembly within the prescribed period. 33. Exemption and Facilities to the University: (1) Notwithstanding anything contained in the prevailing law, if any document required to be registered is to be registered, no registration fee shall be charged. (2) Omitted by the Income Tax Act, 2058. Added by the Act to Amend Some Nepal Acts, 2064. 33a. Approval Required: Notwithstanding anything contained elsewhere in this Act, while making rules or performing actions on matters that entail additional financial burden on the Government of Nepal, the approval of the Government of Nepal shall be obtained. 34. Power to Make Rules: The University may make necessary rules for the purpose of implementing the objectives of this Act. 35. Repeal and Saving: (1) The Tribhuvan University Act, 2028 is hereby repealed. (2) All rights and liabilities including transactions, dealings, debts, assets of the Tribhuvan University existing at the time of commencement of this Act shall vest in the University under this Act. (3) The rules and regulations made under the Tribhuvan University Act, 2028 shall remain in force only for one year from the date of commencement of this Act.